

[doc. web n. 10088943]
Provision of November 13, 2024
Register of provisions
n. 676 of November 13, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30,
2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of the Regulation by Ms. XX
against Montini Group S.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The complaint against the Company and the investigative activity.

With a complaint dated May 3, 2022, Ms. XX alleged presumed violations of the Regulation by Montini
Group S.r.l. (hereinafter, the Company), regarding the processing of personal data related to her
health status.

In particular, it was alleged that the employer contacted the general practitioner of the complainant by
phone, a circumstance made known by the legal representative of the Company, Mr. XX, in a
communication sent via email on April 8, 2022, to a trade union organization that had requested some
clarifications on behalf of the complainant herself ("Last week [the complainant] sent us an email
insisting on requesting a visit with the company doctor, specifying that this indication had been made
by her general practitioner. Without going into the specifics of the conversation, I contacted the doctor
who confirmed that the suggestion made by the employee was not true; indeed, the doctor was
embarrassed by the ongoing requests for suspension from work despite the treatments and prescribed
indications").

The complainant therefore requested the intervention of the Authority, believing that the telephone
communication of the employer with the doctor who had issued certifications for the complainant had
occurred in violation of the Regulation and the Code.

The Company, in responding to a request for information sent by the Authority on September 13, 2023,
with a note dated October 6, 2023, stated that:

the legal representative "contacted by phone, in April 2022, the general practitioner of the complainant
[...] following the persistent requests of the employee to have a visit with the company's competent
doctor at the express request of her general practitioner. The aforementioned phone call was aimed at
informing him that the company's competent doctor [...] would visit the complainant upon her return to
work, following absence for health reasons";

"the repeated requests of the complainant to have medical visits during the period of absence from
work were deemed not worthy of acceptance by the competent doctor based on the health surveillance
plan [...] which provides for the definition of a specific health protocol through medical visits, to be

carried out during the employee's working path (last visit conducted on October 25, 2021)";
"the phone call between the [legal representative] and [the] general practitioner of the complainant [...] was in no way aimed at verifying the reliability of the medical certificates sent by the employee during her illness; there was no request for information on the type of diagnosed pathology, as the purpose of the conversation was not to ascertain the genuineness of the complainant's illness but rather to inform the treating doctor of the [complainant] about what was established by the competent doctor [...] namely the carrying out of the medical visit [...] upon return from illness";
the Company "in order to fulfill its regulatory obligations regarding health and safety at work, processed the personal data of the employee based on Article 9 par. 2 lett. b) and Article 88 of the GDPR, limiting itself to the mere ascertainment of the existence of the prerequisites, represented by the existence of an illness and its temporarily disabling effects without ever requesting or disclosing special data related to the health status of the employee".
In response to the Office's request of March 12, 2024, for further clarifications, the Company, with a note dated March 19, 2024, further highlighted that:
the complainant "requested a visit with the competent doctor via email on April 4, 2022, and via certified email from the union on April 6, 2022. Previously, she had made a phone request and was told to send a written request";
"the request was immediately communicated to the competent doctor by phone, who replied that as long as the [complainant] was on sick leave, he could not proceed with the visit. This response was communicated by phone to the [complainant]";
"The call from the [legal representative] to the general practitioner of the [claimant] was made 1 or 2 days after the call with the competent doctor, to inform that the visit could only take place upon return from sick leave."

2. The initiation of the procedure for the adoption of corrective measures and the Company's submissions.

On June 21, 2024, the Office notified the Company of the alleged violations of the Regulation found, pursuant to Article 166, paragraph 5, of the Code, with reference to Articles 5, paragraph 1, letters a) and c), 6, paragraph 1, letters b) and c), 9, paragraph 2, letter b), of the Regulation, also with reference to what is established by specific sector provisions regarding health checks on the employee's condition (Article 5, Law 20/5/1970, No. 300), the methods of verifying the truthfulness of medical certificates, and the protection of health and safety in the workplace (Legislative Decree April 9, 2008, No. 81).

In defensive memoranda sent on July 19, 2024, the Company stated that:

"Article 41, paragraph 2, letter c) of Legislative Decree 81/08 provides that health surveillance includes a medical visit at the request of the worker, if deemed by the competent doctor [...] related to professional risks or to their health conditions, which may worsen due to the work performed, in order to express the judgment of suitability for the specific task. The procedure for submitting the request for a visit establishes that the worker must communicate to the employer, in writing, the need to consult the competent doctor [...] who will assess the appropriateness of the request";
the Company "once it received the written request from the [claimant] immediately contacted the competent doctor [...] who responded that he could not visit the [claimant] during the sick leave period; once that period was over [...] he would certainly visit her. Shortly thereafter, the [...] legal representative of the company [...] called in total good faith, [the] general practitioner [...] of the [claimant] to inform her about the decisions made by the company doctor";
"This communication, superfluous from a regulatory point of view (according to Article 41 of Legislative Decree 81/08 the general practitioner [...] has no say in health surveillance [...]) is considered necessary by the [legal representative] for planning and managing company resources";
the claimant "being in possession of a driving license, drove the company vehicle used for transportation and for carrying the equipment necessary for carrying out the work activity. Her absences, although justified and deserving of attention from the Employer, through the health surveillance of the competent doctor [...] involved changes in the management of company transport means and difficulties in work planning. This is what the [legal representative] wanted to convey to the

general practitioner [...] of the [claimant]: there was no intention on the part of the company to investigate the origin of any pathology of the employee, nor to ascertain her health conditions, being able to [...] as the employer, legitimately activate the control tools provided for by the sector regulations also in order to prevent or counter absenteeism”;

“The involvement of the general practitioner [...] of the employee was aimed at making it clear, primarily to the [claimant], that the company, while facing difficulties in managing services due to numerous absences, was and is at the forefront in protecting the worker both from the perspective of safety and health”;

the Company “on the occasion of the update of the Treatment Register intends to introduce further control procedures aimed at the continuous improvement of the internal privacy management system of the company, especially for the processing of ‘special’ data, including those related to health.”

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out certain processing operations related to the claimant that are not compliant with the regulations on the protection of personal data.

In this regard, it is highlighted that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor.”

On the merits, it emerged that the Company received, on April 4, 2022, an email from the claimant in which, among other things, along with the submission of a sick leave certificate, she requested “a visit [from the] occupational doctor recommended” by her general practitioner (see attachment to the Company’s note of 19/3/2024).

On April 6, this request was resubmitted to the Company, via communication sent by certified email from a trade union organization, on behalf of the claimant (the letter stated that the claimant “had already requested at the end of last February to be subjected to a visit by the Company’s Competent Doctor, related to the professional risks for her health conditions).”

susceptible to deterioration due to the work activity performed: to date, however, no feedback has been provided”; see attachment to the Company’s note dated 19/3/2024).

According to the Company’s statement, the request to have the visit conducted by the competent doctor (on an unspecified date, presumably after the communication made by the union on behalf of the claimant) was “immediately communicated to the competent doctor by phone, who replied that as long as the [claimant] was on sick leave, he could not proceed with the visit. This response was communicated by phone to the [claimant].”

Furthermore, according to the Company’s statement during the proceedings initiated by the Authority, after communicating the response from the competent doctor to the claimant (1 or 2 days after the latter’s feedback), the Company contacted the claimant’s general practitioner (MMG) by phone to “inform the treating doctor [...] of what was established by the competent doctor [...] namely, that the medical visit [...] could only take place upon the return from illness” (note 6/10/2023).

Regarding the aforementioned phone communication, which took place between the legal representative of the Company and the claimant’s MMG on April 8, 2022, the Company, in response to the note sent by the union organization on behalf of the claimant on April 6, stated that it had “contacted the doctor who confirmed that the suggestion made by the employee was not true; in fact, the doctor himself was embarrassed by the ongoing requests for suspension from work despite the treatments and prescribed indications.”

Therefore, on one hand, the Company stated during the proceedings before the Guarantor that it had contacted the claimant’s general practitioner to inform him that the visit with the competent doctor could only be carried out at the end of the claimant’s illness, after having communicated this to the

claimant herself.

On the other hand, in response to the claimant's request conveyed by the union organization, the Company represented that during the phone communication with the MMG, the latter provided a different version from that represented by the worker regarding the request for a visit with the competent doctor ("he confirmed that the suggestion made by the employee was not true"), and also expressed his own evaluations regarding the requests for sick leave certificates made by the claimant ("the doctor himself was embarrassed by the ongoing requests for suspension from work despite the treatments and prescribed indications": note from the Company dated 8/4/2022).

Based on what was represented in the response note of April 8, 2022, therefore, the subject of the phone conversation between the employer and the MMG also concerned the origin of the request for a visit with the competent doctor, given that the MMG would have claimed that such a request, contrary to what the claimant stated, had not been made by her.

Moreover, the MMG would have provided the employer with evaluations (evidently negative, hence his "embarrassment") regarding the "ongoing requests for suspension from work despite the treatments and prescribed indications."

Based on these references, spontaneously provided by the employer to the union organization, it emerges that the phone communication concerned not only the origin of the request for a visit with the competent doctor but also "the requests for suspension from work," namely the requests for sick leave certification drafted by the same MMG, as well as the "treatments and indications" prescribed to the claimant regarding her health condition by the MMG.

Even referring to what was stated in this regard by the Company in its defensive memoranda, while acknowledging the "total good faith" that would have characterized the conduct subject to complaint, it is noted that, in declaring that the intent of the phone call made to the claimant's general practitioner in a state of illness was to inform the doctor "of the difficulties in managing services due to the countless absences," the Company itself confirms that the direct contact sought by the employer was not only "superfluous," as stated, in relation to what is provided by the regulations on health surveillance, but also unlawful, as the legitimate needs for organization and planning of service shifts cannot interfere with the protection of the employee's health guaranteed by the legal system through the actions of medical personnel required to evaluate exclusively this aspect, based on their professional competencies.

This, of course, is without prejudice to the possibility for the employer to activate the specific remedies provided for the eventual verification of the truthfulness of medical certifications.

In the current regulatory framework, pursuant to Article 5 of Law 20/05/1970, No. 300, "Investigations by the employer regarding the suitability and illness due to disease or injury of the employee are prohibited. Control of absences due to illness can only be carried out through the inspection services of the competent social security institutions, which are required to do so when the employer requests it."

Furthermore, also in order to prevent the employer from obtaining information that is not necessary for the assessment of the employee's professional suitability, the activity of health surveillance

****Preordained for the protection of health and safety in the workplace, it must be carried out with the assistance of the competent physician, who is the only subject authorized to process, in full autonomy and technical competence, the personal health data necessary for the performance of the function of protecting health and safety in the workplace. This is because information related, in particular, to the diagnosis or family medical history of the worker cannot be processed in any way by the employer, who must instead limit themselves to knowing the mere summary judgment of suitability (if applicable with prescriptions, or of unsuitability) for the specific task formulated by the competent physician (see art. 25, Legislative Decree 9/4/2008, no. 81, "Implementation of Article 1 of Law 3 August 2007, no. 123, regarding the protection of health and safety in the workplace"; also see the documents adopted in this regard by the Authority: Guidelines on the processing of personal data of workers for the**

purpose of managing the employment relationship with private employers, at www.garanteprivacy.it, web doc. no. 1364939, especially point 6 and "The role of the competent physician in workplace safety, also with reference to the emergency context," web doc. no. 9585367).**

Regarding the request for a visit addressed to the employer by the complainant, it is noted that Article 41, Legislative Decree no. 81/2008, establishes that the health surveillance carried out by the competent physician includes the "medical visit at the request of the worker, when deemed by the competent physician to be related to professional risks or to their health conditions, which may worsen due to the work activity performed, in order to express the judgment of suitability for the specific task" (art. 41, co. 1, lett. b) and co. 2, lett. c), Legislative Decree 81/2008).

Based on the provisions of the aforementioned sector regulation, the worker can also request a visit with the competent physician, making it irrelevant whether such a request was agreed upon and/or recommended by the General Practitioner (MMG). The aforementioned sector provisions must be observed by the data controller based on the general principle of legality of personal data processing established by Article 5, par. 1, lett. a) of the Regulation. Furthermore, in this context, the telephone communication of the employer, made with the MMG, and the related processing of personal data concerning the complainant, occurred outside of what is "necessary to fulfill a legal obligation" (art. 6, par. 1, lett. c) of the Regulation), since the MMG has no direct role in the worker's request for a visit to the competent physician and therefore there was no need to communicate the response of the competent physician to them. From this perspective, moreover, the communication deemed by the Company to be "superfluous" (see defensive memories 19/7/2024) also occurred in violation of the general principle of minimization according to which data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (art. 5, par. 1, lett. c) of the Regulation).

Even less does such communication, and the related processing of personal data, prove necessary "to fulfill the obligations and exercise the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, to the extent authorized by Union law or the laws of the Member States or by a collective agreement under the laws of the Member States, in the presence of appropriate safeguards" (art. 9, par. 2, lett. b) of the Regulation), which constitutes the condition of legality for the processing of data concerning health (regarding the processing of data related to the health of a candidate for a job position in the absence of legal basis see Provision 8/6/2023, no. 245, web doc. no. 9924438; in relation to a case where the employer contacted the employee's general practitioner by phone prior to the application of the Regulation see Provision 10/4/2014, no. 187, web doc. no. 3214369).

This is with regard to the circumstance, already mentioned above, represented by the Company in the letter of April 8, 2022, in response to the request from the trade union organization delegated by the complainant, that the call with the MMG would have concerned both the origin of the request for a visit with the competent physician and the medical certificates of illness presented by the complainant that would have caused "embarrassment" to the MMG, who would also have referred, during the call, to "treatments and indications" prescribed to the complainant, as well as the representation by the employer that the "countless absences" due to illness of the worker created "difficulties" in the "management of services."

The Company therefore, in the terms described above, violated the provisions established by Articles 5, par. 1, lett. a) (principle of legality of processing) and c) (principle of minimization), 6 and 9 (conditions of legality for the processing of common and special data) of the Regulation also in light of what is prescribed by the sector regulations regarding the protection of health and safety in the workplace (Legislative Decree 9/4/2008, no. 81) and health checks on the employee's status (art. 5, Law 20/5/1970, no. 300).

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, par. 2, Regulation. For the aforementioned reasons, the Authority believes that the statements, documentation, and reconstructions

provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation act of the procedure and are therefore unsuitable to allow for the archiving of the present procedure, nor do any of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company, and specifically the non-compliance with the principle of lawfulness in relation to applicable sector regulations regarding labor law and the specific conditions of lawfulness for the processing of common and special data, is indeed unlawful, as outlined above, in relation to Articles 5, paragraph 1, letters a) and c), 6, and 9 of the Regulation. The violation established in the terms set out in the reasoning cannot be considered "minor," taking into account the nature of the violation which concerned the general principles and conditions of lawfulness of the processing, the seriousness of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation). The Authority also took into account the average level of severity of the violation in light of all relevant factors in the specific case, and in particular the nature, severity, and duration of the violation, considering the nature, object, or purpose of the processing in question as well as the number of affected individuals and the level of damage suffered by them. The Authority also considered the criteria related to the intentional or negligent nature of the violation and the categories of personal data affected by the violation as well as the manner in which the supervisory authority became aware of the violation (see Article 83, paragraph 2 and Recital 148 of the Regulation).

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). The violation of Articles 5, paragraph 1, letters a) and c), 6, and 9 of the Regulation entails the application of the administrative sanction provided for by Article 83 of the Regulation. The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction as provided for by Article 83 of the Regulation, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689), in relation to the processing of personal data carried out by Montini Group S.r.l., whose unlawfulness has been established, as outlined above. It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation where it states that "If, in relation to the same processing or to related processing, a data controller [...] violates, intentionally or negligently, various provisions of this regulation, the total amount of the administrative pecuniary sanction shall not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5. With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been considered: a) in relation to the nature of the violation, it concerned cases punished more severely under Article 83, paragraph 5 of the Regulation (general principles and conditions of lawfulness of processing); in relation to the severity of the violation, the nature of the processing was taken into account, which involved the processing of special data related to the health conditions of the data subject; b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the negligent conduct of the Company and its degree of responsibility were taken into account, as it did not comply with the regulations on data protection regarding multiple provisions; c) in favor of the Company, account was taken of its cooperation with the supervisory authority and the circumstance that the established violation concerned only the complainant. It is also considered that the economic conditions of the offender, determined based on the financial statements for the year 2023, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). In light of the above elements and assessments, it is deemed appropriate, in this specific case, to impose on Montini Group S.r.l. an administrative sanction of payment of an amount equal to 6,000 euros (six thousand). In this context, it is also deemed necessary, pursuant to Article

166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, to proceed with the publication of this section containing the injunction order on the Garante's website. This is in consideration of the type of violations established that concerned the general principles of processing and the conditions of lawfulness of the processing of data regarding the health status of the employee also in light of the current regulations.

sector discipline regarding health surveillance.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the illegality of the processing carried out by Montini Group S.r.l., represented by its legal representative, with registered office at Via Cipro, 58, Brescia (BS), Tax Code 03635930989, pursuant to Art. 143 of the Code, as detailed in the reasoning, for the violation of Articles 5, paragraph 1, letters a) and c), 6 and 9 of the Regulation;

ORDERS

pursuant to Art. 58, paragraph 2, letter i) of the Regulation, Montini Group S.r.l. to pay the sum of €6,000 (six thousand) as an administrative monetary sanction for the violations indicated in this provision;

REQUIRES

therefore the same Company to pay the aforementioned sum of €6,000 (six thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Art. 27 of Law No. 689/1981. It is reminded that the offender has the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the filing of the appeal as indicated below (Art. 166, paragraph 8, of the Code);

PROVIDES

pursuant to Art. 166, paragraph 7, of the Code and Art. 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, for the publication of the injunction order on the Guarantor's website;

pursuant to Art. 154-bis, paragraph 3, of the Code and Art. 37 of the Guarantor's Regulation No. 1/2019, for the publication of this provision on the website of the Authority;

pursuant to Art. 17 of the Guarantor's Regulation No. 1/2019, for the annotation of the violations and the measures adopted in accordance with Art. 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Art. 57, paragraph 1, letter u) of the Regulation.

Pursuant to Art. 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place

identified in the same Art. 10, within thirty days
from the date of communication of the
provision itself, or sixty days if the
applicant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei